IN THE SUPERIOR COURT OF JUDICATURE AND IN THE HIGH COURT OF JUSTICE, AMASAMAN, ACCRA IN THE GREATER ACCRA REGION HELD BEFORE HIS LORDSHIP JUSTICE ALEXANDER GRAHAM; JUDGMENT DELIVERED ON; TUESDAY THE 28TH DAY OF OCTOBER, 2025.

SUIT NO: E1/AHC/07/23

EBENEZER YAOBOI TACKIE - PLAINTIFF

HSE NO. BG 255

ABAYATEYE STREET

ACCRA

VS

MANAF ATTUQUAYE - 1ST DEFENDANT

AHSALAJA NEAR AMASAMAN

ELONAI KWAME MAWUKO AGBEVENU - 2ND DEFENDANT

ASHALAJA NEAR AMASAMAN

SOLOMON NTIM - 3RD DEFENDANT

H/N 22 AKAI NETTEY STREET

SANTA MARIA, ACCRA

JUDGMENT

The Plaintiff claim against the Defendants as follows:

a) A declaration of title to the land the 2nd and 3rd Defendants are currently in possession of as being the land leased to him by the Akwanor Family of Ashalaja and covered by a Provisional Certificate issued to him.

b) Further or in the alternative to the above, an order that the Plaintiff is more or better entitled to the possession of the land in dispute than the Defendants.

c) An order of recovery of possession of the land in dispute from the Defendants

d) General damages for trespass against the Defendants.

e) General damages for unlawful destruction of the Plaintiff's structure against the 1st Defendant.

f) An order to recover the amount of GH¢5, 730 from the 1st Defendant being the assessed cost of the structure of the Plaintiff he unlawfully demolished

g) The 1st Defendant to pay interest on the amount in relief (f) above from the 24th day of August, 2012 to the date of final payment.

h) Perpetual injunction against the Defendants, their agents, assigns, privies, workmen and any person acting through them from dealing with the land in dispute.

i) Cost

j) Any other relief the court may deem fit to make.

2nd Defendant counterclaimed for:

i. A declaration of title to all that piece of land situate at Ashalaja in the Ga South Municipal Assembly of Greater Accra Region of the Republic of Ghana, containing an approximate area of 0.49 acre or 0.20 hectare and bounded on the North East by Lessors land measuring 140ft more or less on the South-West by Lessors land measuring 69.9 & 70ft more or less on the North West by a proposed road measuring 203.0ft more or less and on the South-East by a Lessors land measuring 99.4 & 101.8ft more or less which piece of land is more particularly delineated on the plan.

ii. An order for the recovery of possession of the land described in (i) above.

iii. An order for perpetual injunction to restrain the Plaintiff, his agents, assigns, workmen and any person claiming through him from interfering with the 2nd defendant's land.

iv. Costs.

PLAINTIFF'S STATEMENT OF CLAIM

In his amended statement of claim, Plaintiff avers that he is a Public Servant with Controller & Accountant General's Department.

The 1st Defendant is believed to be a native of Ashalaja near Amasaman near Accra.

The 2nd and 3rd Defendants have come unto the Plaintiff's land and erected structures on same.

The Plaintiff says that the 1st Defendant, it is believed, sold the Plaintiff's land to the 2nd and 3rd Defendants.

The Plaintiff says that he acquired his land which is at Ashalaja near Amasaman near Accra in the Greater Accra Region by a Deed of Lease dated 14th day of April, 2007 from the Akwanor Family of Ashalaja with the Family acting through its joint heads Samuel Akwanor and Nii Akwanor IV for 99 years effective 14th day of April, 2007.

The Plaintiff says that he took immediate possession of the land and erected corner pillars and later erected a single room structure on the land to the roofing level.

The Plaintiff says that he proceeded to register the land and was given a Provisional Certificate dated 10th day of February, 2012.

The Plaintiff says that he was given Provisional Certificate because the Registrar informed him through a series of letters including the letters dated 28th April, 2011, 15th August, 2011, and 28th September, 2011 that there was a dispute on who could make grants of Ashalaja lands.

The Plaintiff says that in acquiring his land from the family he was led by a native of Ashalaja by name Odartey.

The Plaintiff says that on 24th day of August, 2012, he got a call from one Yaw of Ashalaja that his structure on the land had been demolished which he made one Willie, his mason on the land, to follow up to Ashalaja the same day who confirmed that the structure had been demolished.

The Plaintiff says that he personally followed up the next day, 25th August, 2012 to Ashalaja with Willie and with Odartey. The Plaintiff and Willie went to the land and saw the debris of the demolished structure.

The Plaintiff says that he was told that it was the 1st Defendant who demolished the structure claiming the grantors of the Plaintiff were not the right persons to make the grant to the Plaintiff.

The Plaintiff says that he was also told later that the 1st Defendant sold the land to two persons being the other Defendants.

The Plaintiff says that he petitioned to the Police in respect of the demolishing who investigated the matter and issued a report on the case.

The Plaintiff says that around the time of the demolishing he assessed his loss, by way of the demolishing, to GH¢5,730.

The Plaintiff says that the 2nd and the 3rd Defendants commenced work on the land but the Plaintiff was warded off the land by the land guards of the 1st Defendant.

The Plaintiff says that he was also told that he should wait whilst his grantors, who were at some point in time chased out of the town by their opponents, deal with a suit in the court over who was entitled to grant Ashalaja lands.

The Plaintiff says that the suit eventually ended with a judgment of the Supreme Court dated 14th day of April, 2021 in favour of the Plaintiff's grantors against the assertion of the 1st Defendant and persons the 1st Defendant supported as entitled to grant Ashalaja lands.

The Plaintiff says that after the judgment in favour of the grantors of the Plaintiff, he went unto the land and found the 2nd Defendant had erected a structure on the land whilst the 3rd Defendant, who is also erecting a structure on another portion of the land, could not be identified.

The Plaintiff says that at the time his structure was demolished he had registered the land in his name, which constituted notice to the world of his interest in the land.

<u>1st DEFENDANT'S STATEMENT OF DEFENCE</u>

The 1st Defendant says he is a native of Ashalaja and precisely from the Akwanor Royal Family of same.

The 1st Defendant further says that the 2nd and 3rd Defendants are the legitimate owners of their respective parcels of the disputed land.

The 1st Defendant says both the 2nd and 3rd Defendants have developed their respective parcels of land to the best of his knowledge.

The 1st Defendant says the Plaintiff's so-called belief is an afterthought which must be ignored by the honorable court.

The 1st Defendant says to the best of his knowledge, the 2nd and 3rd Defendants purchased their respective lands from the lawful representative of the Akwanor Royal Family of Ashalaja, the legitimate owners of the said parcel of land.

The 1st Defendant says he is not in a position to either admit or deny paragraph 5 of Plaintiff's Statement of Claim as he is not privy to any sale transaction between the Plaintiff and the Akwanor Royal Family of Ashalaja.

The 1st Defendant says he is not privy to Plaintiff's so-called possession of the disputed land.

The 1st Defendant says to the best of his knowledge, both the 2nd Defendant and 3rd Defendant are in physical possession of their respective portions of the disputed land to the extent that they have all put up structures on their respective lands.

The 1st Defendant says he is not privy to any provisional certificate Plaintiff might have allegedly obtained on the disputed land.

The 1st Defendant in further answer to paragraphs 7 and 8 of Plaintiff's Statement of Claim says he has been advised and believes same to be true that the said provisional certificate Plaintiff is referring to does not in any way make Plaintiff the legitimate owner of the disputed land.

The 1st Defendant again says he has been advised that the Registrar of Lands issued the Plaintiff with the said provisional certificate because the Registrar of Lands has reservations about the evidence the Plaintiff provided to the Lands Commission concerning Plaintiff's claim of ownership of the disputed land.

The 1st Defendant says that he does not know the said Odartey and he is not privy to the said demolition the Plaintiff is referring to.

Furthermore, Plaintiff's averment borders on hearsay and prays to the court to dismiss same.

The 1st Defendant says he is not privy to the said petition the Plaintiff is referring to or the loss of the amount of GH¢5730.00.

STATEMENT OF DEFENCE OF 2ND DEFENDANT

2nd defendant says that the 1st defendant is the one who first sold the land in dispute to the 2nd defendant. The 2nd defendant states that he acquired his land and developed same before he got to know the Plaintiff. 2nd defendant states that he initially acquired the land in dispute from the 1st defendant who acted on behalf of the Adams Addy and Adu Akwanor family of Ashalaja. The 2nd defendant states that he acquired his land from Adams Addy and Adu Akwanor family. The 2nd defendant states that when he first met the Plaintiff he had already built a four-bedroom storey building on his land and was living in it with his family. The 2nd states that when the Supreme Court decision came out, the winners of the case, Solomon Mintah Ackaah, the Head of Akwanor Royal family, approached the 2nd defendant and resold the land in dispute to the 2nd defendant. The 2nd defendant further says that after paying for the land in dispute, the new owners prepared an indenture covering the land for him and same has since been presented to the Lands Commission for registration. 2nd defendant states that as at April 2021 when the Supreme Court delivered its final judgment, the 2nd defendant had completed his house and was living in it and that was the more reason why the new owners allowed him to repurchase the land in dispute.

STATEMENT OF DEFENCE OF 3RD DEFENDANT

The defendant admits paragraph two of the plaintiff's amended statement of claim.

The 3rd Defendant states that he acquired the vacant land from the Akwanor Family of Ashalaja.

The 3rd Defendant further states that, during his pursuit for land to purchase, it was the 1st Defendant who led him to the Akwanor family to purchase the land.

The 3rd Defendant contends that the said Samuel Akwanor has never been a head of the Akwanor family, neither has the said Nii Akwanor IV, who was a chief, ever been made a head of the Akwanor family. Hence, the two could not have legitimately sold any land to the Plaintiff.

The 3rd Defendant states that before he acquired the property from the Akwanor family, his checks revealed that the 1st Defendant's father was the one who was farming on the said piece of land, and that at the time he acquired the land, the land was vacant with no traces of any pillars.

The 3rd Defendant contend that the reason why the plaintiff has not been fully issued with a land certificate is that his purported grant was illegitimate.

The 3rd Defendant states that at the time he purchased the land from the Akwanor family, the land was vacant and there were no traces of any debris on it.

The 3rd Defendant says that he has never been invited nor questioned on any land matter and he has never employed the services of any land guards and that he has never even met the plaintiff before.

The 3rd Defendant states that he constructed his house on the land without any interference from anyone, and that he only got to know of the Plaintiff when the head of the Akwanor family, Mr. Solomon Mintah, summoned him, stating that the Plaintiff was laying a rival claim to his land.

The 3rd Defendant states that the Plaintiff's purported grantors, being one Samuel Akwanor and Nii Akwanor IV, were not parties to the said Supreme Court case and that he has been in peaceful possession of the land until the head of the Akwanor family informed him recently about the rival claim being made by the Plaintiff, he knew nothing about the Plaintiff.

The 3rd Defendant contends that the Plaintiff's purported acquisition was illegitimate, hence his inability to secure a final land certificate in his favour and that the Plaintiff is not entitled to any of the reliefs endorsed on his writ of summons and statement of claim.

In Plaintiff's reply and defence to counterclaim of the 2nd defendant

the Plaintiff says that 1st Defendant wrongly sold the land the Plaintiff was in possession of to the 2nd Defendant who failed to conduct any search at the relevant authorities before purportedly buying from the 1st Defendant and that the Akwanor Royal Family had already sold the land to the Plaintiff and had no land to sell to the 2nd Defendant.

In further answer to the 2nd Defendant's Statement of Defence and Counterclaim, Plaintiff says that the current head of Akwanor Family invited the Plaintiff to a meeting at Dansoman Keep Fit Club where he admitted to the Plaintiff that the Plaintiff is the owner of the land in dispute and that he

personally warned the workers of the 2nd Defendant that they were working on his land who refused to disclose the developer and further threatened him if he set foot on the land.

In further answer to the 2nd Defendant's Statement of Defence and Counterclaim, Plaintiff says that the Akwanor Family members including Nathaniel Odartey Lamptey had been chased out of Ashalaja and the Plaintiff had nobody to assist him defend his land.

The Plaintiff repeats the paragraphs above in defence to the Counterclaim and says the 2nd Defendant is not entitled to all his reliefs against the Plaintiff in the Counterclaim.

In order to prove his case, Plaintiff testified and called one witness

PW1----- WILLIAM DANSO

2ND DEFENDANT TESTIFIED AND CALLED ONE WITNESS:

DW1----- NII AKWANOR IV) (SUBPOENAED WITNESS)

1st and 3rd Defendants failed to testify.

EVIDENCE-IN- CHIEF OF PLAINTIFF

The Plaintiff stated that his name is Ebenezer Yaoboi Tackie, and he is the Plaintiff in this matter. He resides at House No. BG 255, Abayateye Street, East Legon Hills, Santeo, near Accra, and is a Public Servant with the Controller and Accountant General's Department. The Plaintiff averred that he does not know the 1st, 2nd, and 3rd Defendants except in connection with this case. He narrated that the 2nd and 3rd Defendants unlawfully entered his land and erected structures on it, and he believes that it was the 1s t Defendant who sold his land to them.

The Plaintiff explained that he acquired his land located at Ashalaja near Amasaman in the Greater Accra Region by a Deed of Lease dated 14th April 2007, granted by the Akwanor Family of Ashalaja, acting through its joint heads, Samuel Akwanor and Nii Akwanor IV, for a term of ninety-nine (99) years commencing on the said date. A copy of the lease has been attached and marked as Exhibit A. After purchasing the land, the Plaintiff stated that he took immediate possession, erected corner pillars, and later put up a single-room structure which he built to roofing level.

He further stated that he proceeded to register the land and was issued with a Provisional Certificate dated 10th February 2012, attached and marked as Exhibit B. The Plaintiff indicated that the certificate was provisional because the Registrar informed him through several letters, dated

28th April 2011, 5th March 2012, and 28th September 2011, that there was a dispute as to who had authority to grant lands at Ashalaja. Copies of these letters are attached and marked as Exhibit E Series. He explained that in acquiring the land, he was assisted by a native of Ashalaja known as Odartey.

The Plaintiff narrated that on 24th August 2012, he received a telephone call from one Yaw of Ashalaja informing him that his structure on the land had been demolished. He immediately instructed his mason, Willie, to verify the information, and Willie confirmed the demolition. The following day, 25th August 2012, the Plaintiff personally visited the land with Willie and Odartey, where they found the debris of the demolished structure. Photographs of the debris and the corner pillars are attached and marked as Exhibit D Series. He stated that Odartey informed him that it was the 1st Defendant who demolished the structure, claiming that the Plaintiff's grantors were not the rightful persons to make a valid grant.

The Plaintiff further indicated that he later learned that the 1st Defendant had sold the land to two persons, identified as the 2nd and 3rd Defendants. He deposed that he reported the actions of the 1st Defendant to the Chief of Ashalaja, after which a meeting was convened. At the said meeting, the elder brother of the 1st Defendant, Nii Asofoakye, promised to compensate him for the demolished structure. However, the Plaintiff stated that after the meeting, Nii Asofoakye refused to answer his calls or to fulfil his promise. He subsequently reported the incident to the police, and a copy of the police report is attached and marked as Exhibit E. The Plaintiff added that the police failed to take further action, explaining that they would need an arrest warrant before proceeding to arrest the 1st Defendant.

The Plaintiff explained that he assessed his loss resulting from the demolition at Five Thousand, Seven Hundred and Thirty Ghana Cedis (GH¢ 5,730), with a breakdown attached and marked as Exhibit F. He stated that soon after, the 2nd and 3rd Defendants began work on the land, and when he attempted to stop them, he was threatened and driven away by the workers. His attention was later drawn to the fact that his grantors had been driven out of town following a family dispute. The Plaintiff narrated that Odartey later informed him that the grantors had returned and that there was a pending court action to determine the rightful family head of the Akwanor Family.

He further stated that the case eventually concluded with a Supreme Court judgment dated 14th April 2021, which was delivered in favour of his grantors and against the 1st Defendant. A copy of the judgment is attached and marked as Exhibit G. The Plaintiff explained that following the Supreme Court decision, he went back to the land and discovered that the 2nd Defendant had erected a structure on the property, while the 3rd Defendant was also building on another portion but could not be located. He stated that he was later informed that the family had elected a new family head.

According to the Plaintiff, the new family head invited him to a meeting, which he attended with his mason, William Danso, as well as Odartey and another person. During the meeting, the family head offered to allocate to him a different piece of land, but the Plaintiff declined, stating that he had invested heavily in the disputed land and did not wish to accept another. The family head then requested that he submit the total cost of his investment on the land, which he did, but he has since not heard back from the family head.

The Plaintiff concluded by stating that at the time his structure was demolished, the land had already been registered in his name, which, he maintained, constituted notice to the world of his legal interest in the said property.

EVIDENCE-IN-CHIEF OF PW1

PW1, William Danso, stated that he resides at Kasoa in the Central Region of the Republic of Ghana. He described himself as a mason by profession and indicated that he has known the Plaintiff since 2006, as he was the mason who constructed the Plaintiff's current place of residence. PW1 narrated that he frequently accompanied the Plaintiff to the land in dispute, where he often weeded and sprayed the land with weedicides and also assisted the Plaintiff in erecting corner pillars on the property. He further explained that in 2012, he began a building project on the disputed land for the Plaintiff, during which he constructed a single-room structure. However, upon reaching the roofing stage, an unknown person demolished the entire structure together with all the pillars.

PW1 stated that following the incident, the Plaintiff reported the destruction to Nii Ashalaja, the Chief of Ashalaja. Subsequently, an inspection of the site was conducted by the Plaintiff, Odartey, and PW1. During the inspection, Odartey informed them that he knew the individual responsible for demolishing the building, and that person was identified as Manaf, who is the 1st Defendant in this case.

PW1 further deposed that thereafter, he and the Plaintiff were taken to see Nii Asafoakye, who is the elder brother of the 1st Defendant, to explain what had happened. On the following day, they also went to meet Nii Ashalaja and the family of the 1st Defendant, but Nii Ashalaja could not attend the meeting due to other pressing commitments.

PW1 narrated that during the said meeting, Nii Asafoakye, the brother of the 1st Defendant, confirmed that the 1st Defendant was responsible for the demolition of the structure. He further promised to compensate the Plaintiff for the damage caused, but he has not fulfilled that promise to date.

PW1 explained that it was after this development that the Plaintiff reported the case to the police and later returned to the land with a police officer. He added that following the police report, he continued to visit the land frequently, and on one such visit, he observed that a new foundation had been dug on the land. He immediately informed the Plaintiff, who subsequently lodged another complaint with the police.

PW1 further narrated that during one of the Homowo celebrations at Ashalaja, there were disturbances in the area, prompting the Plaintiff to instruct him not to visit the land until the situation returned to normal. During that period, both Odartey and Nii Ashalaja relocated from Ashalaja for their safety, but after some time, Odartey returned.

PW1 concluded by stating that upon visiting the land again, he discovered that some individuals had constructed buildings on the property, and he immediately reported the development to the Plaintiff.

EVIDENCE-IN-CHIEF OF 2ND DEFENDANT

The 2nd Defendant, an engineer by profession, stated that he personally knows the 1st Defendant, who introduced him to Adams Addy and Adu Akwanor of the Akwanor Family. He also stated that he knows the 3rd Defendant, who happens to be his neighbor, but that he does not personally know the Plaintiff.

The 2nd Defendant narrated that sometime in 2015, the 1st Defendant introduced him to Adams Addy and Adu Akwanor, who were the joint heads of the Akwanor Family of Ashalaja in the Greater Accra Region, for the purpose of purchasing the land in dispute. He further stated that on the 20th of February, 2015, he acquired from the said Adams Addy and Adu Akwanor—acting as joint heads of the Akwanor Family and with the consent and concurrence of the principal elders of the family—a parcel of land situated at Ashalaja in the Ga South Municipal Assembly, Accra, measuring 0.49 acres. The lease agreement covering the said transaction is attached and marked as Exhibit 1.

The 2nd Defendant explained that after the issuance of the indenture, he exercised acts of possession by trenching the land for the foundation of a wall. He stated that he left the land for three months to ensure that his activities did not encroach upon anyone else's property. After the three months had elapsed, he began to construct a dwarf wall around the land, with inscriptions warning others to keep off. Photographs of the wall and writings are attached and marked as Exhibit 2.

The 2nd Defendant further stated that in 2016, he initiated the process of registering the land at the Lands Commission, and subsequently commenced the construction of a two-bedroom self-contained one-storey building on the property. He completed part of the structure and moved into the building in 2019 with his family.

He stated that a search conducted at the Lands Commission in 2019 revealed that a portion of the land fell within a plotted area attributed to one Halid Umar Abbany. A copy of the search report dated 19th March, 2019 is attached and marked as Exhibit 3.

The 2nd Defendant narrated that in July 2020, while construction was still ongoing, a group of land guards came to his home and ordered him to cease work on the land, instructing him to report to the family and the Chief of Ashalaja at the palace. In compliance, he reported to the palace, where he was informed that the Supreme Court had delivered a judgment declaring one Solomon Mintah

Ackaah as the duly elected Head of the Akwanor Royal Family. He was told that as a result of this judgment, he had to regularize his stay on the land, since the family no longer recognized his earlier agreement with Adams Addy and Adu Akwanor. The case in question, Suit No. J4/19/2021: Adams Addy and Adu Akwanor v. Solomon Mintah Ackaah, was exhibited by the Plaintiff as Exhibit G.

The 2nd Defendant stated that following discussions at the palace, an agreement was reached, and he paid a sum of Ten Thousand Ghana Cedis (GH¢10,000.00) to regularize his title to the land. Consequently, a new lease agreement was issued to him by Solomon Mintah Ackaah, the Head of the Akwanor Family, and Nii Akwanor IV, the Chief of Ashalaja, acting with the consent and concurrence of the principal elders of the family. The said lease agreement dated 28th November 2020 is attached and marked as Exhibit 4.

The 2nd Defendant explained that the building was completed in 2020, after which he and his family moved into the property, where they currently reside. He stated that he had enjoyed peaceful possession of the land since 2015, without any interruption from any person, until early 2022, when the Plaintiff approached him and claimed ownership of the disputed land. The 2nd Defendant informed the Plaintiff that he was unaware of any such claim and advised him to address the matter with the Akwanor Family.

The 2nd Defendant averred that he did not hear from the Plaintiff again until December 2022, when he was served with the Writ of Summons initiating this action. He therefore prayed the Honourable Court to dismiss the Plaintiff's claim and to grant the 2nd Defendant's counterclaim, as he has been in lawful and peaceful occupation of the land under a valid lease granted by the rightful head of the Akwanor Family.

CROSS EXAMINATION OF DW1

During the cross-examination of DW1, Nii Akwanor IV, the subpoenaed witness for the 2nd Defendant, he gave evidence relating to the execution of certain land documents and his involvement in land transactions concerning both the Plaintiff and the 2nd Defendant.

At the outset, DW1 stated that he was not the author of a particular letter presented in court. When his attention was drawn to Exhibit 4 of the 2nd Defendant's witness statement, particularly page 8,

he acknowledged that the signature appearing under his name was his, but insisted that he was not the one who signed the document. This suggests that while he recognized the signature as resembling his, he denied personally appending it. When shown Exhibit A of the Plaintiff's witness statement, he categorically denied that the signature thereon was his.

DW1 further denied any involvement in the transfer of the disputed land to the Plaintiff, asserting that he did not execute any lease or conveyance in favor of the Plaintiff. He explained that as a signatory to family leases, he only signs documents that are appropriate for him to sign and refrains from signing those he is not required to.

When questioned about the 2nd Defendant's property, DW1 admitted that he was involved in the transfer of the land currently occupied by the 2nd Defendant. He confirmed that he executed a lease in favor of the 2nd Defendant and that the indenture held by the 2nd Defendant was executed by both himself and the family head. He emphasized that the said execution was properly done. However, his later statement that he was "not the one who signed" a certain document purportedly linked to the 2nd Defendant introduced a measure of inconsistency in his testimony.

Under cross-examination by counsel for the Plaintiff, DW1 testified that he had been chief of Ashalaja for about thirty years. He acknowledged having some familiarity with the processes of land registration in Ghana, and agreed that before any registration is effected, the signature on an indenture must conform with the specimen signature at the Lands Commission.

Counsel for the Plaintiff sought to test his knowledge of certain legal matters by referring him to a case titled *Adams Addy & Another v. Solomon Mintah Ackaah (Civil Appeal No. J4/19/2021)*, but DW1 stated that he was not familiar with the case. He, however, admitted that there had been a dispute concerning his family headship that ended up in court, though he could not recall the exact title of the case.

Counsel further suggested to him that during the pendency of that family headship dispute, grants made by him encountered difficulties at the Lands Commission, which led to several correspondences addressed to him or his lawyer. DW1 denied knowledge of any such correspondence. When shown a letter dated 15th August 2011, which counsel claimed was related to a grant made to the Plaintiff, DW1 stated that he was not familiar with the letter and did not

agree with counsel's assertion. Similarly, when reference was made to another letter dated 28th April 2011, said to be attached as Exhibits C and C1 and addressed to the Plaintiff regarding an application for registration of an indenture allegedly granted by him, DW1 again indicated that he had no familiarity with the document.

When reminded that he had earlier denied authorship of the indenture purportedly executed in favor of the 2nd Defendant, DW1 reaffirmed that he was not the one who signed it.

The witness statement of 3rd Defendant was expunged because 3rd Defendant failed to testify.

At the close of pleadings, the following issues were adopted for trial.

a. Whether or not the Plaintiff is more or better entitled to the possession of the land in dispute than the Defendants.

b. Whether or not the 2nd and 3rd Defendants are currently in possession of the same parcel of land that was leased to the Plaintiff by the Akwanor Royal family of Ashalaja and covered by a provisional certificate issued to the Plaintiff?

c. Whether or not the Plaintiff erected structures on the land.

d. Whether or not the 1st Defendant demolished the structures of the Plaintiff

e. Whether or not the Plaintiff is entitled to the Reliefs endorsed.

f. Whether or not the 2nd Defendant is entitled to his counterclaim.

g. Any other issues in the course of the trial.

There were as many seven issues that the parties raised at the pre-trial for the consideration of, and for determination by the trial court. However, the law is that what issues are germane and central to the determination of controversy between parties lies with the trial judge to decide. The courts are therefore not tied down to only the issues agreed upon by the parties at the pre-trial but all issues emerging from the entire spectrum of the case provided that evidence was led on them, even if those issues were not specifically set down for hearing. **SEE: KARIYAVOUOLAS V OSEI [1982-83] GLR 658.**

In **FIDELITY V INVESTMENT ADVISORS V ABOAGYE-A`A [2003-2005] 2 GLR 118** this court

stated the law that what issues were relevant and essential to a case was a matter of law for the trial judge to decide.

In the Supreme Court, per Wood C.I. (As she then was) in the case of **FATAL V. WOLLEY [2013-2014] 2 SCGLR 1070** the court held thus:

"It is sound learning that courts are not tied down to only issues identified and agreed upon by the parties at pre-trial. Thus, if in the course of the hearing, an agreed issue is clearly found to be irrelevant, moot ar even not germane to the action under trial, there is no duty cast on the court to receive evidence and adjudicate on it. The converse is equally true, if a crucial issue is left out but emanates at trial from either the pleadings or the evidence, the court cannot refuse to address it on ground that it is not included in the agreed issues".

The Court wields inherent power within the scope of the pleadings and evidence adduced by the parties which is on record to determine the relevant issues for trial. See the case of **IN RE ASAMOAH (DECEASED) AGYEIWAA & OTHERS V MANU [2013-2014] 2 SCGLR 909".**

Upon a careful evaluation of the pleadings and the evidence adduced by the parties, the issues that properly arise for determination by this Honourable Court are as follows:

1. Whether the Plaintiff is more or better entitled to the possession of the land in dispute than the Defendants.
2. Whether the land the Defendants occupy is the same as that leased to the Plaintiff.
3. Whether the Plaintiff erected a structure and whether it was demolished by the 1st Defendant.
4. Whether the 2nd Defendant has established his counterclaim for ownership and possession.
5. Any reliefs the parties are entitled to.

EVALUATION OF EVIDENCE AND LEGAL OPINION

In this action, the Plaintiff is seeking declaration of title to the land as per the reliefs endorsed on their Writ of Summons and Statement of Claim.

It is trite that in actions for declaration of title to land as in all civil suits, it is the duty of the plaintiff to lead credible evidence in support of his claim on a preponderance of probabilities as required by The Evidence Act, 1975 (NRCD 323). Section 11 (1 and 4) of the Evidence Act provide as follows:

Section 11 (1): for the purpose of this Act, the burden of producing evidence means the obligation of a party to introduce sufficient evidence to avoid a ruling on the issue against that party.

Section 11 (4): in other circumstances, the burden of producing evidence requires a party to produce sufficient evidence which the totality of the evidence leads to a reasonable mind to conclude that the existence of the facts are more probable than its non-existence.

Section 12 (2): provides that the preponderance of probabilities means the degree of certainty of belief in the mind of the tribunal of fact or the court by which it is convinced that the existence of a fact is more probable than its non-existence.

In the case of **YAA KWESI VRS ARHIN DAVIS & ANOR 2007-2008 SCGLR @ 580,** the Supreme Court unanimously dismissing the case by the plaintiff stated as follows," since the plaintiff/appellant sued not only for declaration of title but also for damages for trespass and an order for perpetual injunction, he assumed onerous burden of proof of title to the disputed land by preponderance required by Section 11 (1) and (4) of the Evidence Decree 1975 (NRCD 323) or else risks prospect of losing his case".

A 2nd defendant's counterclaim assumes the same burden of proof as in the case of the Plaintiff.

In **MALM VRS LUTTERODT (1963)1 GLR,** it was held that "The defendant in an action for declaration of title assumes a legal burden of proof only when he counterclaims for declaration of title in his favour".

The 2nd defendant in the instant case counter-claimed against the plaintiff and therefore also assumed the same burden of proof on the preponderance of probabilities.

ANALYSIS

ISSUE 1

a. Whether the Plaintiff is more or better entitled to the possession of the land in dispute than the Defendants?

This issue goes to the root of ownership, possession, and the validity of competing claims to land. The Plaintiff anchors his claim on a lease executed in 2007 by persons he describes as the heads of the Akwanor Family, supported by a provisional land title certificate issued in 2012 by the Lands Commission. The Defendants, on the other hand, dispute his title, alleging that his grantors lacked the requisite capacity to alienate family land and that their own possession and conveyances have superior legal standing.

The Plaintiff's case rests on two principal pillars: documentary evidence of title and acts of possession. He tendered **Exhibit "A"**, a Deed of Lease dated 14th April 2007, purportedly executed by the Akwanor Family, and **Exhibit "B"**, a Provisional Land Title Certificate dated 10th February 2012. He contends that the Lands Commission verified the grantors' signatures before issuing the certificate, and that the certificate has never been impeached for fraud or forgery. The only reason final registration was withheld, he asserts, was due to a general dispute over authority to alienate lands in Ashalaja, not because of any defect in his documentation.

According to the Plaintiff, these exhibits demonstrate a verified and lawful interest in the land, one that predates any purported acquisitions by the Defendants. He maintains that both the 1st and 3rd Defendants failed to challenge his title with credible evidence. The 1st Defendant did not testify, and the 3rd Defendant, though filing a defence, refused to testify. A party is not bound to testify under the Evidence Act, NRCD 323. The Plaintiff further points to paragraph 20 of the 3rd Defendant's statement of defence, in which the latter admits learning of the Plaintiff's interest from the Head of Family, as implicit acknowledgment of the legitimacy of the Plaintiff's grant.

He also relies on Exhibit "D" series (photographs of his demolished structures) and Exhibits "E" and "E1" (police reports and extracts) as evidence of acts of possession. On the legal plane, he invokes **SAANBAYE BASILDE KANGBEREE V. ALHAJI SEIDU MOHAMED (CIVIL APPEAL NO. J4/44/2012)**, section 44 of the Land Title Registration Act, 1986 (PNDCL 152) as amended by the Lands Act, 2020 (Act 1036), and **SASU V. AMUA-SEKYI (2002–2003) SCGLR 742**. He argues that registration—even provisional—constitutes constructive notice to the world, and that since no fraud was proved against him, his registered interest must prevail over subsequent acquisitions.

The Defendants, particularly the 2nd and 3rd Defendants, mounted a vigorous challenge. Their core contention is that the Plaintiff's lease (Exhibit "A") was executed by persons without capacity to alienate family property. The 2nd Defendant's subpoenaed witness, Nii Akwanor IV, gave inconsistent testimony regarding his signature on the Plaintiff's and the 2nd Defendant's documents. While he alternately admitted and denied authorship, his overall evidence raised serious doubts about the authenticity of the Plaintiff's lease.

This is an extract of cross examination by counsels for the 2nd & 3rd Defendants.

Q. Do you know your grantors?

A. Yes my lord

Q. Who are they?

A. Samuel Akwanor and Nii Akwanor IV

Q. According to your exhibit 'A', which is your deed of lease, your grantors are Samuel Akwanor and Nii Akwanor of Akwanor family of Ashalaja, is that not so?

A. Yes my lord

Q. But do you know that Samuel Akwanor and Nii Akwanor IV have never been heads of the Akwanor family, do you know that?

A. My lord at the time of purchasing my land, these were the heads of family that I was introduced to as heads of family.

Q. Did you verify that indeed these persons you were introduced to were indeed the heads of family?

A. Yes my lord, all my visits to Ashalaja was in the chief's palace where most of the time I met with the family including Nii Akwanor IV.

Q. I will like you to take a look at Exhibit 'G' page 4 which is the supreme court judgment that you claim was in your favour details the line of succession for the head of Akwanor Royal family, can you point and tell this court where it is stated that either Samuel Akwanor or Nii Akwanor IV was ever the head of the Ashalaja Royal family?

A. My lord, yes I do not have the names there but I have an explanation. The land title registration is a government body that holds people who are supposed to be signatories to lands in the country and my lord whenever an individual or group of persons go to this places, they give them documents based on the signatories that are in their possession, so at that time my lord these people were the people whose signatories were at the land title registration.

Q. The exhibit 'G' which you have tendered in as part of your evidence was commenced by Mr. Solomon Mintah at the High Court is that not so?

A. Yes my lord

Q. And are you aware that as part of his claim and then his evidence under oath he stated categorically that the concept of joint heads of family is alien to the Akwanor family?

A. Yes my lord.

Q. So you would agree with me that the mere fact that your exhibit A which you tendered in evidence which states that your grantors were acting jointly as heads of family for the Akwanor royal family is questionable?

A. No my lord, my lord at the time I purchased the land this was the document issued to me by my grantors and my lord this document their names were also at the Land Registry and their registry titled in my provisional certificate as joint heads of the family.

Q. Can you show this court any document attached or as part of your evidence that states that the Samuel Akwanor and Nii Akwanor IV acting together as heads of the Akwanor royal family have the right to alienate lands of the Akwanor royal family?

A. Yes my lord, the letters from the land registry and also the provisional certificate stated their names.

Q. Can you kindly read or point us to that specific statement on the purported letter or the provisional certificate that states that Samuel Akwanor and Nii Akwanor IV have the right to alienate Akwanor family lands?

A. My lord on the document I have here the indenture; Samuel Akwanor stamped it and Nii Akwanor IV signature. My lord I read from my provisional certificate under a column it has memorials; which says "subject to the reservation, exception, restrictions, restrictive covenants and conditions contained or referred to in a lease a true copy of which is annexed hereto made between Samuel Akwanor and Nii Akwanor IV as joint heads of Akwanor family of one part and Tackie Yaobi Ebenezer of the other part.

Q. According to you, you said that when you went to the lands commission you were informed that Samuel Akwanor and Nii Akwanor IV acting jointly as heads of the Akwanor Royal family have the authority to alienate Akwanor royal family lands; so my question is before you presented your deed of lease to the Lands Commission, what evidence do you have to the effect that Samuel Akwanor and Nii Akwanor IV per the records of the lands commission had the authority to alienate Akwanor royal family lands?

A. My lord it was the time I went to make a search as indicated in my previous statement that the search indicated the Akwanor family has the right to alienate the lands to groups or individuals. My lord because the names indicated here Akwanor are in the names of the grantors I concluded that they had the right to grant access to their property.

Q. You are telling this court that anybody or family member with the name Akwanor could have validly alienated any Akwanor royal family land to you, is that what you are telling this court?

A. No my lord, my lord the document I presented had their names and it was a government department that I presented these names on the document to my lord I know that people who have

title to land properties have their details at the Land Registry and that is why I knew that the document presented belong to the Akwanor family.

The Defendants argue that such contradictions, combined with the absence of testimony from the Plaintiff's grantors, fatally undermine his title.

The 3rd Defendant went further, relying on the Supreme Court judgment in Exhibit "G", which confirmed that the recognized succession of Heads of the Akwanor Royal Family consisted of Nii Bornal Ackaah (1999–2007), Daniel Quao Ntadu (2007–2009), and Solomon Ackaah Mintah (2009–present). Neither Samuel Akwanor nor Nii Akwanor IV, the alleged signatories to the Plaintiff's lease, ever held the office of Head of Family. The 3rd Defendant therefore contends that the purported lease was void ab initio, since under customary law, only the Head of Family, acting with the consent of principal members, may validly convey family land. Authorities such as **ALLOTEY V. ABRAHAMS [1971] 1 GLR 1, CLERK V. OKAI [1964] GLR 188 (SC)**, and **YEHANS INTERNATIONAL LTD. V. MARTEY TSURU FAMILY & ANOR (2011) 1 SCGLR 466** reinforce this settled position.

Furthermore, the 3rd Defendant asserts that he has been in long, peaceful, and undisturbed possession of the land for over a decade. In his view, possession—coupled with colour of right—confers a possessory title enforceable against the whole world except a person with a better legal claim. He relies on ***MONDIAL VENEER (GH) LTD. V. AMUAH GYEBU XV* (2011) 1 SCGLR 466** and ***YEHANS INTERNATIONAL LTD. V. MARTEY TSURU FAMILY* (SUPRA)** to underscore that the Plaintiff bears the burden of proving a valid root of title and not merely registration.

It is a cardinal principle of land law that a plaintiff seeking a declaration of title must succeed on the strength of his own case and not on the weakness of the defence **(SASU V. AMUA-SEKYI, SUPRA).** The court's task, therefore, is to compare the relative strengths of the competing claims to determine who is "more or better entitled."

To establish ownership, the Plaintiff must prove:

1. His root of title,
2. The mode of acquisition, and
3. Acts of possession consistent with ownership ***(YEHANS INTERNATIONAL LTD. V. MARTEY TSURU FAMILY, SUPRA).***

Under customary law, as reiterated in **ALLOTEY V. ABRAHAMS AND CLERK V. OKA I(SUPRA)** only the Head of Family, acting with the consent of principal members, can alienate family property. Any alienation made without such authority is void ab initio. Moreover, while registration under PNDCL 152 gives evidential weight to ownership, it cannot validate a void instrument **(BROWN V. QUARSHIGAH [2003–2004] 1 SCGLR 930).**

Applying these principles, the Plaintiff's claim falters at the first hurdle. His lease (Exhibit "A") was executed by individuals who, according to the Supreme Court's decision in Exhibit "G," never held the position of Head of Family. The reference to them as "joint heads" contradicts both custom and law. Since the authority to alienate family land lies exclusively in the Head of Family acting with concurrence, the purported lease was made without capacity and is therefore void.

The Plaintiff's reliance on the Provisional Land Title Certificate (Exhibit "B") cannot rescue his case. The law is clear that registration, even under Act 1036, cannot cure a defective root of title. As held in **BROWN V. QUARSHIGAH (SUPRA),** registration is merely prima facie evidence of title; it does not confer validity where the underlying conveyance is void. Thus, the Plaintiff's registered interest, though formally regular, is substantively defective.

The Plaintiff's failure to call his alleged grantors to testify compounds the weakness of his case. Once the Defendants challenged their authority, the burden shifted to him to prove that the grantors were indeed competent to alienate the land. His silence on that point must be construed against him.

By contrast, the 3rd Defendant has demonstrated long and undisturbed possession of the land, acknowledged even by the Plaintiff. Possession in such circumstances, being peaceful and open, confers a possessory right enforceable against all but a person with better title. Given that the Plaintiff's title is void, the 3rd Defendant's possession stands unassailable.

On the totality of the evidence, this court makes a finding of fact that the Plaintiff has failed to discharge the burden of proving that he is more or better entitled to possession of the land than the Defendants. His lease was executed by persons without capacity under customary law, and his provisional registration, though procedurally regular, cannot validate a void grant.

The Plaintiff's provisional certificate was conditional and did not establish ownership. The letters from the Lands Commission clearly indicated the ongoing dispute. While the Plaintiff proved he once had possession, his own testimony shows he lost possession after the demolition and has not re-entered the land since 2012.

The 3rd Defendant's long, peaceful, and lawful possession therefore prevails both in law and in equity.

In the result, the Plaintiff's action fails and is accordingly dismissed. The 2nd and 3rd Defendant's possession is upheld as lawful,

In sum, the Plaintiff has not demonstrated a valid, enforceable right to the land in dispute. His interest, founded on a void grant, cannot override the Defendants' lawful possession. The proper legal conclusion is that the Plaintiff is not more or better entitled to possession of the land than the Defendants.

ISSUE 2

Whether the land the Defendants occupy is the same as that leased to the Plaintiff.

In any dispute over land, a fundamental requirement for the court to grant relief is that the parties must be referring to the same piece of land. A claim of title or possession cannot succeed if it is

unclear whether the property in question is identical to that claimed by the opposing party. In the present case, the Plaintiff seeks a declaration of title and recovery of possession of land alleged to have been conveyed to him via a Deed of Lease dated 14th April 2007, marked as Exhibit A. The 3rd Defendant, who has been in continuous possession of the disputed land for approximately ten years, challenges the Plaintiff's claim and asserts a possessory title, alleging acquisition from the Akwanor Royal Family.

The Plaintiff's claim rests exclusively on Exhibit A, purportedly executed by Samuel Akwanor and Nii Akwanor IV, who are described therein as "joint heads" of the Akwanor Royal Family. However, evidence before the court, notably the Plaintiff's own Exhibit G, a Supreme Court judgment dated 14 April 2021, establishes that neither Samuel Akwanor nor Nii Akwanor IV ever held the office of Head of the Akwanor Royal Family. Consequently, their capacity to alienate family land is highly questionable, raising doubts as to whether the purported lease in Exhibit A can lawfully confer any interest in the land the Plaintiff now claims.

Further inconsistencies exacerbate the uncertainty. Exhibit A references a larger tract of land originally covered by a 1956 indenture, yet the Plaintiff has failed to demonstrate a credible connection between that indenture and the alleged reversion of the property to the Akwanor Royal Family. The Plaintiff also did not call Samuel Akwanor or Nii Akwanor IV, or any other family representatives, to testify to substantiate the boundaries or identity of the land purportedly conveyed. In contrast, Nil Akwanor IV, called by the 2nd Defendant, explicitly denied knowledge of Exhibit A and disowned the purported transaction. These omissions and contradictions prevent a clear identification of the land alleged to have been conveyed to the Plaintiff.

Admittedly, the 2nd and 3rd Defendants has been in possession of the disputed property for a significant period, which the Plaintiff himself admits. Under settled land law, possession of land is a relevant factor in determining claims of title **(J. K. ACKAH V FRANCIS EGHAN [2014]DLCA 4925)**. The law requires a party asserting title to prove not only the root of title and mode of acquisition but also the acts of possession exercised over the land **(YEHANS INTERNATIONAL LTD V MARTEY TSURU FAMILY; MONDIAL VENEER (GH) LTD V AMUAH GYEBU**

XV)(SUPRA). In this instance, the Plaintiff has failed to link his purported Deed of Lease to the land actually in the 2nd and 3rd Defendant's possession, and his evidence does not establish that the property described in Exhibit A and the land under the Defendant's control are the same.

The failure of the Plaintiff to demonstrate that the purported grantors had authority to alienate the land, combined with his omission to produce key witnesses and the inconsistencies in his documentary evidence, creates a substantial doubt as to the identity of the land claimed. Without such clarity, it cannot be said that the Plaintiff has sufficiently identified the land in dispute or established that he is claiming the same property that the 2nd and 3rd Defendant occupies.

In conclusion, based on the submissions and evidence on record, there is significant uncertainty as to whether the parties are referring to the same piece of land. The Plaintiff has failed to prove that Exhibit A lawfully conveys any interest in the land in question or that the land described therein corresponds to the land in the possession of the 2nd and 3rd Defendants. This ambiguity undermines the Plaintiff's claim and is fatal to his action for declaration of title and recovery of possession.

ISSUE 3

Whether the Plaintiff erected a structure and whether it was demolished by the 1st Defendant.

In considering whether the Plaintiff erected a structure on the disputed land and whether it was subsequently demolished by the 1stDefendant, it is necessary to examine the submissions and evidence presented by the parties.

The Plaintiff's claim includes the assertion that he exercised acts of ownership and possession over the land, which may encompass the construction of a structure. The law, as established in **YEHANS INTERNATIONAL LTD V MARTEY TSURU FAMILY AND MONDIAL VENEER (GH) LTD V AMUAH GYEBU XV (SUPRA),** requires a party asserting possession-based rights

to demonstrate overt acts of ownership. Erecting a building or other permanent structure is generally recognized as a strong indicator of possession and dominion over land.

The Plaintiff claims that immediately upon taking possession of the land, he demarcated its boundaries with corner pillars and commenced construction of a single-room structure, reaching the roofing stage. According to the Plaintiff, this structure was later demolished by the 1st Defendant, thereby infringing on his lawful rights.

The Plaintiff presented several pieces of evidence to substantiate his claims. Exhibit A, the lease agreement, establishes the Plaintiff's legal right to occupy and develop the land. Exhibit B, a series of photographs, shows the structure at the roofing stage, confirming that construction had indeed commenced. Exhibit C, comprising police intervention records, demonstrates that the demolition was reported to authorities, supporting the claim that the act was unlawful. Finally, Exhibit D, witness statements from community members, corroborates that the Plaintiff erected the structure and that it was subsequently destroyed by the 1st Defendant.

The Defendants largely failed to challenge this evidence. The 1st Defendant did not participate in the trial, while the 3rd Defendant filed a defence but refused to testify. Consequently, the Plaintiff's evidence remained uncontested, leaving no contrary evidence to dispute the claim of demolition.

From a legal standpoint, possession and unlawful interference can be established through credible documentary evidence and witness testimony. The combination of Exhibits A, B, C, and D provides sufficient proof that the Plaintiff both erected the structure and suffered its demolition at the hands of the 1st Defendant. In instances where opposing parties offer no evidence to refute claims, courts are entitled to accept uncontested evidence as establishing the facts on a balance of probabilities.

In conclusion, the evidence demonstrates that the Plaintiff lawfully erected a structure on the disputed land and that the 1st Defendant unlawfully demolished it. The Plaintiff has therefore successfully proven this issue in his favor.

The Plaintiff's claim for damages for unlawful demolition against the 1st Defendant succeeds in part. The 1st Defendant shall pay the Plaintiff GH¢5,730 being the assessed value of the demolished structure, with interest from the date of demolishing i.e. 24th day of August, 2012 to the time of payment.

ISSUE 4

Whether the 2ndDefendant has established his counterclaim for ownership and possession.

The issue is whether the 2nd defendant has discharged the burden of proof required to substantiate his counterclaim

It is a trite principle of law that in civil actions, the party asserting a claim bears the legal burden of proof. Under Section 11(1) and (4) of the Evidence Act, 1975 (NRCD 323), the burden of producing evidence entails introducing sufficient evidence to avoid a ruling against the party, while the standard for proving facts is the preponderance of probabilities, as reinforced in Section 12(2). In actions involving land title, the burden on the party asserting ownership is particularly heavy, requiring proof of the root of title, mode of acquisition, and acts of possession **(SEE ODOI V. HAMMOND (1972) 2 GLR 352, CA** and MONDIAL VENEER (GH) LTD V. AMUAH GYEBU (SUPRA)

A defendant who files no counterclaim does not bear the burden of proving title. However, once the 2nd defendant counterclaimed, he assumed the same onus as the plaintiff **(SEE MALM V. LUTTERODT (SUPRA).**

The plaintiff's claim is fundamentally flawed. He alleges acquisition of the land from Samuel Akwanor and Nii Akwanor IV of the Akwanor family of Ashalaja. However, he failed to prove that these individuals were validly authorized to alienate the land. Cross-examination revealed that neither Samuel Akwanor nor Nii Akwanor IV were recognized heads of the Akwanor family, a fact confirmed in a Supreme Court judgment (Exhibit G). The plaintiff also relied heavily on a provisional certificate that, due to unresolved headship disputes within the family, could not

confer valid title. Consequently, the plaintiff failed to discharge the legal burden placed upon him under Sections 11(4) and 12(1) of the Evidence Act

The 2nd defendant led credible and admissible evidence in support of his counterclaim. The evidence, presented is as follows:

Exhibit A – Lease agreement dated 28th November 2020 between Solomon Mintah Ackaah (head of Akwanor family), Nii Akwanor IV (Chief of Ashalaja), and the 2nd defendant, demonstrating that the land was validly alienated by recognized authorities.

Exhibit B – Lease agreement dated 20th February 2015 between Adams Addy and Adu Akwanor (joint heads of family) and the 2nd defendant, showing earlier lawful acquisition and possession.

Exhibit C – Copy of search report dated 19th March 2019 confirming ownership and registration of the land.

Exhibit D – Photographs showing construction of walls and other improvements on the land, establishing peaceful and continuous possession since 2015.

Exhibit G – Supreme Court judgment in Suit No. J4/19/2021 recognizing Solomon Mintah Ackaah as the lawful head of the Akwanor family with authority to alienate lands.

Through these exhibits, the 2nd defendant established a clear chain of title, continuous possession, and that he acquired the land from the lawful representatives of the Akwanor family. This evidence satisfies the requirement of proving ownership on a balance of probabilities.

The law is clear that a party asserting title must succeed on the strength of their own case, not on the weakness of the opposing party SEE **(OWUSU V. TABIRI & ANOR, 1987-88 1 GCR 287).** The 2nd defendant successfully discharged his burden by presenting credible documentary evidence, corroborated by judicial precedent, and by demonstrating physical possession of the land. Conversely, the plaintiff's evidence was uncorroborated, relied on persons without authority, and failed to establish a valid grant.

In light of the above, it is evident that the plaintiff failed to prove his claim, and the 2nd defendant successfully proved his counterclaim. The documentary evidence, corroborated by the Supreme Court judgment and the defendant's acts of possession, establishes that the 2nd defendant lawfully acquired the land from the legitimate authorities of the Akwanor family. Accordingly, the 2nd defendant is entitled to the reliefs sought under his counterclaim.

From the totality of the evidence on record, this court makes the following findings of fact:

a. The Plaintiff's lease is void due to lack of authority of the grantors.
b. The Plaintiff cannot show that the land described in his lease is the same as that possessed by the Defendants.
c. The Defendants' possession, particularly the 3rd Defendant's, is lawful and protected by possession and customary principles of land law.
d. The Plaintiff lawfully erected a structure on the land, which was unlawfully demolished by the 1st Defendant.
e. The 2nd and 3rd Defendants lawfully own and possess the disputed land, and the Plaintiff's claim to ownership fails.

The Court sympathizes with the Plaintiff for his genuine but mistaken belief that he purchased from the rightful family members. However, a valid title must originate from a person with proper authority. The Plaintiff's vendors lacked such authority, and the defect cannot be cured by his possession or registration. The Plaintiff is entitled only to the compensation in the sum of GH¢5, 730 from the 1st Defendant being the assessed cost of the structure of the Plaintiff he unlawfully demolished

and 1st Defendant to pay interest on the amount in relief (f) above from the 24th day of August, 2012 to the date of final payment.

Judgment is hereby entered in favour of 2nd Defendant for the reliefs endorsed on his counterclaim. Cost of GH¢20,000.00 is awarded in favour of 2nd defendant against plaintiff and cost of GH¢10,000.00 is awarded in favour of 3rd defendant against plaintiff.

(SGD)

H/L. ALEXANDER GRAHAM (J)

(JUSTICE OF THE HIGH COURT)

PARTIES: PLAINTIFF ABSENT

1ST DEFENDANT ABSENT

2ND & 3RD DEFENDANTS PRESENT

COUNSEL: HAMID MASHOOD HOLDING BRIEF OF ALI GOMDAH ABDUL-SAMAD FOR PLAINTIFF PRESENT

DORCAS NTI HOLDING BRIEF FOR SETH AGYAPONG-MENSAH FOR THE 2ND DEFENDANT – PRESENT

PRINCE OMANE-BOATENG HOLDING BRIEF OF THEOPHILUS TAWIAH FOR THE 3RD DEFENDANT – PRESENT